

BEFORE THE
FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

Complainant,

v.

FEIGE "PEGGY" OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

Docket No. 21-02

MOTION FOR EXTENSION OF DEADLINES IN REVISED SCHEDULING ORDER

Complainant YSN Imports Inc. d/b/a Flame King ("Complainant") and Respondents Feige "Peggy" Oberlander, U Shippers Group, Inc., U Shippers Group Management Co., Inc. ("Respondents"), by and through their undersigned counsel, jointly file this Motion for an extension of the deadlines set forth in the Order on Motions and Revised Scheduling Order served on October 7, 2021 ("Revised Scheduling Order") and, in support, state as follows:

1. On October 22, 2021, Respondents and Complainant exchanged initial productions of documents pursuant to the deadline in the Revised Scheduling Order. The initial productions consisted of voluminous emails, attachments and spreadsheet documents. After an exchange between counsel concerning the format of the production, Respondents made a supplemental production on November 8, 2021. Complainant is reviewing this additional, voluminous production to identify follow-up issues, additional production needed and/or potential motions to compel to Respondents and, as such, Complainant requires additional time to complete these tasks.

2. Respondents have identified follow-up requests to Complainant based on their review of the initial production. Complainant has agreed to produce additional documents, including bills of lading and invoices for numerous container shipments, and executed service contracts entered into by Complainant with Carriers in support of its damages claim in this proceeding. Complainant requires additional time to make this supplemental production.

3. Respondents have further requested production of executed service contracts between a third party Freight Alliance Shipper's Association ("FASA") and Carriers, under which YSN's cargo was moved. Complainant has responded that such documents are outside the scope of production required from YSN, and are not within YSN's possession, custody, or control. Respondents have indicated this issue may require an application to the Presiding Officer for a motion to compel production of the FASA contracts with Carriers. The resolution of this discovery dispute will require additional time, including a short briefing schedule.

4. Once the document discovery issues are resolved, the parties have agreed to conduct depositions of FRCP Rule 30(b)(6) corporate witnesses and individuals including, among others, Feige "Peggy" Oberlander for Respondents and Sam Newman for Complainant on or around December 15 and 16, 2021.

5. Counsel for the parties have conferred concerning the open discovery issues and have agreed on the need for an extension of the deadlines in the Revised Scheduling Order. Respondents and Complainant jointly request the extension of deadlines as described below. Based on the foregoing, Complainant respectfully requests that this Motion for an Extension of the Revised Scheduling Order be granted to extend the deadlines as follows:

December 23, 2021	Complete Fact Depositions.
January 7, 2022	Identify Experts and Provide Expert Reports.
January 14, 2022	Disclosure of Rebuttal Expert Reports, if any.
January 28, 2022	All Discovery Completed.
February 18, 2022	Complainant Files Brief With Proposed Findings Of Fact and Appendix.
March 18, 2022	Respondent Files Opposition Brief With Proposed Findings of Fact and Responses to Complainant's Proposed Findings of Fact and Appendix.
April 1, 2022	Complainant Files Reply Brief With Responses To Respondents' Proposed Findings Of Fact.

Dated: November 16, 2021

Respectfully submitted,

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